

**THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI.
COMPLAINT NO: CC006000000100542.**

Debashish Prakash Karkera

... Complainant.

Versus

Nirmal Developers
(OLYMPIA A B)

...Respondents.

MahaRERA Regn: P51800011870

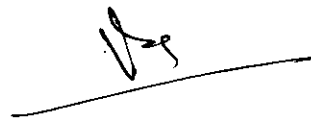
Coram: Shri B.D. Kapadnis,
Hon'ble Member II.

Appearance:
Complainant: Adv. Pooja Gaikwad.
Respondents: Ms Vaishali Mohite.

**FINAL ORDER
27th December 2019.**

The complainant booked flat no.306 in C-wing of the respondents' registered project Olympia and paid them Rs. 34,23,192. Thereafter the complainant has cancelled the booking on 19.04.2017. The respondents agreed to re-pay Rs. 39,03,192 but re-paid Rs. 14,00,000/-. They issued six post-dated cheques for paying the balance amount but those cheques bounced and hence, the complaint is filed.

2. The preliminary objection regarding maintainability of the complaint has been disposed of by holding that the cheque amounts were payable after RERA came into force and the respondents failed to honour the cheques. This amounts to indulgence in unfair practice within Section 7 of RERA. Hence, I find that the



complainants are entitled to get the balance amount of Rs. 25,03,192/- as per the settlement dated 19.04.2017. The complainants are also entitled to get Rs. 20,000/- towards the cost of the complaint. Respondents to make the payment as directed.

Mumbai.

Date: 27.12.2019.


27.12.19
(B. D. Kapadnis)
Member II, MahaRERA,
Mumbai.

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Coram: Shri B.D. Kapadnis,
Member-II.

Appearance:

Complainant: Adv. Ms. Pooja Gaikwad.

Respondent: Absent.

**ORDER ON THE RECOVERY APPLICATION
23rd December, 2020**

The complainant reports non-compliance of the final order passed in the complaint. None appears for the respondent. Hence, issue recovery warrant for recovery of the money under section 40(1) of the RERA. The complainant to submit his statement of claims.

Date: 23.12.2020.



23.12.2020
(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.